

nished the powerful momentum behind this "force bill." Mr. Lowe of Kansas said:

"While murder is stalking abroad in disguise, while whippings and lynchings and banishment have been visited upon unoffending American citizens, the local administrations have been found inadequate or unwilling to apply the proper corrective. Combinations, darker than the night that hides them, conspiracies, wicked as the worst of felons could devise, have gone unwhipped of justice. Immunity is given to crime, and the records of the public tribunals are searched in vain for any evidence of effective redress." ¹⁵

Mr. Beatty of Ohio summarized in the House the case for the bill when he said:

". . . certain States have denied to persons within their jurisdiction the equal protection of the laws. The proof on this point is voluminous and unquestionable. . . . [M]en were murdered, houses were burned, women were outraged, men were scourged, and officers of the law shot down; and the State made no successful effort to bring the guilty to punishment or afford protection or redress to the outraged and innocent. The State, from lack of power or inclination, practically denied the equal protection of the law to these persons." ¹⁶

While one main scourge of the evil—perhaps the leading one—was the Ku Klux Klan,¹⁷ the remedy created was

¹⁵ *Id.*, p. 374.

¹⁶ *Id.*, p. 428.

¹⁷ As Randall, *op. cit.*, *supra*, note 12, p. 855, says in discussing the Ku Klux Klan: "A friendly view of the order might represent it as an agency of social control in the South. Yet it never attained the dignity of the vigilance committees of the western states nor of the committees of safety of Revolutionary times."